

Court No. - 40

Case :- WRIT - C No. - 226 of 2025

Petitioner :- Guddi Kesarwani

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ajay Kumar, Amit Sharma

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Shekhar B. Saraf, J.

Hon'ble Vipin Chandra Dixit, J.

1. Heard counsel on behalf of the parties.

2. This is a writ petition under Article 226 of the Constitution of India wherein the writ petitioner has prayed for the following reliefs:-

"I. Issue a writ, order or direction in the nature of certiorari quashing the impugned order dated 26.7.2024 passed by the Executive Engineer Electricity Distribution Division Rambagh 1A, Kamla Nehru Road, Prayagraj (Respondent No.4), contained as (Annexure-No.10) to this writ petition.

II. Issue a writ, order or direction in the nature of mandamus directing/commanding the respondent authorities to grant domestic electricity connection to the petitioner in the house of petitioner."

3. It is to be noted that by an order dated June 21, 2024, a coordinate Bench of this Court had examined the entire case of the petitioner and passed an order in favour of the petitioner. The said order is delineated below:-

"1. Heard learned counsel for the petitioner; learned Standing Counsel for the State-respondents and learned counsel for the Electricity Department.

2. The present writ petition has been preferred for following reliefs:-

"(i) Issue a writ, order or direction in the nature of certiorari quashing the impugned order passed by the Executive Engineer Electricity Distribution Division Rambagh 1A, Kamla Nehru Road, Prayagraj (Respondent no. 4), contained as (Annexure No. 8) to this writ petition.

(ii) Issue a writ, order or direction in the nature of mandamus directing/commanding the respondent authorities to grant domestic electricity connection to the petitioner in the house of petitioner."

3. Attention was drawn to the order dated 20.07.2022 passed by the Electricity Consumer Grievance Redressal Forum, Prayagraj whereby

petitioner was directed to apply for fresh electricity connection. It is submitted that all necessary documents have been supplied, however, still the same has not been considered. Submission of the learned counsel for the petitioner is that the petitioner is in possession over the property and has filed a suit for partition being O.S. No.11 of 2022 claiming only 1/7th share of the property in question, therefore, being in possession she cannot be denied electricity connection.

4. We have occasion to peruse the record in question as well as the Electricity Supply Code, 2005. The Electricity Supply Code, 2005 is a self-contained Act and full-fledged mechanism provided therein to redress the grievance of the petitioner. We are also of the considered opinion that the petitioner has every right to get the new electricity connection in view of the provisions contained under Clause 4.4 (a) of the Electricity Supply Code, 2005, which reads as under.

"Processing of Application for Supply:

(a) Application for new connections, in prescribed form (Annexure 4.1) and complete in all respects and accompanied by the prescribed Registration-cum-processing fee, shall be filed in duplicate in the office, specified by the Licensee, along with -attested true copies of the following documents:

(i) Proof of ownership of the premises in the form of registered sale deed or partition deed or succession or heir ship certificate or deed of last will or Proof of occupancy such as valid power of attorney or latest rent paid receipt or valid lease deed or indemnity form as per Annexure 4.2. Order Copy of appropriate court, in case of litigation regarding ownership of the premises, has to be enclosed.

(ii) Approval/permission / NOC of the local authority, if required under any law/statute.

(iii) In case of a partnership firm, partnership deed.

(iv) In case of a Limited Company, Memorandum, articles of Association, Certificate of incorporation and list of Director's / certified addresses.

(v) Work completion and Test certificate, on the prescribed format (Annexure 4.4), given by the licensed electrical contractor can be submitted later but prior to commencement of supply.

(vi) Owner's consent for getting new supply connection. (Annexure 4.3) "

5. In view of the above, on consent and without expressing any opinion on the merits of the issue and considering the facts and circumstances of the case, this writ petition is disposed of leaving it open to the petitioner to move an appropriate application in the light of aforesaid provision within a week's time. In case any such application is being preferred, we hope and trust that the same would be looked into, examined and remedied strictly in accordance with law as expeditiously as possible and preferably within a period of six weeks from the date of production of a certified copy of the order."

4. In spite of the said order, the authority concerned has rejected the application of the petitioner on the following grounds:-

"माननीय उच्च न्यायालय इलाहाबाद के उपरोक्त आदेश के तहत आप द्वारा उक्त परिसर पर मालिकाना हक साबित करने हेतु कोई पुख्ता प्रमाण एवं आदेश में उल्लिखित क्लॉज 44 ए के प्रावधानों का पालन करते हुए अन्य कोई दस्तावेज उपलब्ध नहीं कराया गया। आप द्वारा सामान्य निवास प्रमाण पत्र, गैस पास बुक राशन कार्ड की प्रति तथा माननीय न्यायालय में चल रहे आपके बटवारा सम्बन्धी वाद का वाद पत्र संलग्न किया गया है जो नया संयोजन निर्गत किये जाने हेतु पर्याप्त नहीं है।"

5. One is unable to fathom the reasoning provided by the respondent authorities wherein he has rejected the application of the petitioner on the ground that the petitioner has not been able to provide ownership proof of the premises where he is residing. In a catena of judgments of the Supreme Court, law has been laid down that even an occupier/trespasser is entitled for electricity connection as the same is a fundamental right under Article 21 of the Constitution of India. It is to be noted that the petitioner has provided his domicile certificate, gas passbook and ration card which indicated that he is residing in the aforesaid premises.

6. In light of the above, we are of the view that the order dated July 26, 2024 passed by the authority is liable to be quashed and set-aside, and accordingly, the same is quashed and set-aside with a direction upon the respondent No.4, being the Executive Engineer, Purvanchal Vidyut Vitran Nigam Limited, Division Ram Bagh, Prayagraj, to grant electricity connection to the petitioner within a period of eight weeks from date upon making statutory payment by the petitioner.

7. With the aforesaid directions, the writ petition is disposed of.

Order Date :- 11.2.2025

Rakesh

(Vipin Chandra Dixit, J.) (Shekhar B. Saraf, J.)